

HOUSE No. 2787

The Commonwealth of Massachusetts

PRESENTED BY:

Tackey Chan

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to certain option B and option C retirees.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Tackey Chan</i>	<i>2nd Norfolk</i>	<i>1/17/2025</i>

HOUSE No. 2787

By Representative Chan of Quincy, a petition (accompanied by bill, House, No. 2787) of Tackey Chan relative to certain option B and option C retirees. Public Service.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to certain option B and option C retirees.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding the provisions of any general or special law to the
2 contrary, a member, who retired before July 1, 2004 and is receiving a lesser retirement
3 allowance in accordance with the terms of Option (c) of subdivision (2) of section 12 of chapter
4 32 of the General Laws, from a retirement system that accepts the provisions of this act, shall
5 have their monthly retirement allowance, exclusive of any cost of living adjustments, increased
6 as follows: \$200 if receiving a lesser retirement allowance from the state employees retirement
7 system; \$290 if receiving a lesser retirement allowance from the state teachers' retirement
8 system; and if receiving a lesser retirement allowance from any other retirement system
9 established under the provisions of chapter 32 and 34B, by an amount determined by the
10 system's retirement board to be fair and equitable but no greater than \$200.

11 SECTION 2. Notwithstanding the provisions of any general or special law to the
12 contrary, a member, who retired before July 1, 2004 and is receiving a lesser retirement
13 allowance in accordance with the terms of Option (b) of subdivision (2) of section 12 of chapter

32 of the General Laws, from a retirement system that accepts the provisions of this act, shall have their monthly retirement allowance, exclusive of any cost of living adjustments, increased as follows: \$66 if receiving a retirement allowance from the state employees retirement system; \$97 if receiving a retirement allowance from the state teachers' retirement system; and if receiving a retirement allowance from any other retirement system established under the provisions of chapter 32 and 34B, by an amount determined by the system's retirement board to be fair and equitable but no greater than \$200.

SECTION 3. Any retirement system may accept the provisions of sections 1 and 2 of this act by a majority vote of the board of each such system, subject to the approval of the legislative body. For the purposes of this act, "legislative body" shall mean, in the case of a city, the city council in accordance with its charter, in the case of a town, the town meeting, in the case of a county, the county retirement board advisory council, in the case of a region, the regional retirement board advisory council, in the case of a district, the district members, and, in the case of an authority, the governing body. For purposes of this act, the state employees and state teachers' retirement systems shall be deemed to have accepted the provisions of this act.

SECTION 4. The provisions of this act shall be prospective from the effective date of this act and shall not entitle any member or spouse of a deceased member to any retroactive benefits.